

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**----- X
QUWAN SMALLS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, New York City Police
Department Officer ("P.O.") MAN LEE (Shield #5570),
and P.O. JOHN DOES 1-5, in their individual capacities,Defendants.
----- X

Index No.:

Date Purchased:

SUMMONSPlaintiff designates Kings
County as place of trial.The basis of venue is the location of
the unlawful acts

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
February 12, 2018

BELDOCK LEVINE & HOFFMAN LLP



By:

Gillian Cassell-Stiga
99 Park Avenue, PH/26th Fl.
New York, New York 10016
(212) 490-0400
Attorneys for Plaintiffs

To:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Officer MAN LEE (Shield #5570)
1 Police Plaza
New York, NY 10038

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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff QUWAN SMALLS, through his attorney Gillian Cassell-Stiga of Beldock
Levine & Hoffman, LLP, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, detained, arrested, and searched him. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, plaintiff was deprived of his constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES AND JURISDICTION

1. Plaintiff Quwan Smalls was at all times relevant to this action, a resident of Kings County in the State of New York.
2. Defendant The City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named individual defendants.
3. New York City Police Department Officer ("P.O.") Man Lee (Shield #5570) ("Lee") and P.O. John Does 1-5 (referred to collectively as the "individual defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.
4. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
5. The individual defendants are being sued in their individual capacities.

6. The individual defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
7. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
8. The true name and shield number of defendants John Does are not currently known to the plaintiff.¹ However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

JURISDICTION AND VENUE

9. Venue is properly laid in the Supreme Court of the State of New York, County of Kings because the torts originated in the County of Kings.
10. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

STATEMENT OF FACTS

4. On January 7, 2017, at approximately 2:10 a.m., Quwan Smalls was unlawfully arrested by P.O. Lee and P.O. Does 1-5 at or about the corner of Verona Street and Van Brunt Street in Kings County in the State of New York.

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

5. Shortly before his arrest, Mr. Smalls encountered an individual known to him injured on the sidewalk.
6. P.O. Lee and P.O. John Does 1-5 arrived.
7. P.O. John Does 1, a white officer with glasses, pushed Mr. Smalls.
8. P.O. John Does 2, a Hispanic officer, punched Mr. Smalls in the face.
9. Mr. Smalls attempted to leave.
10. Mr. Smalls was tasered from behind while attempting to leave.
11. Mr. Smalls was taken to the hospital to have the taser removed from his body
12. Mr. Smalls was held in custody and then released under twenty-four hours later when Mr. Smalls accepted an adjournment in contemplation of dismissal.
13. Mr. Smalls was charged with Obstruction of Governmental Administration in the Second Degree (P.L. § 195.05) and Resisting Arrest (P.L. § 205.30).
14. The charges were based on the materially false statements submitted by the individual defendants.
15. Mr. Smalls had committed no criminal acts and his arrest was without probable cause.
16. P.O. Lee and P.O. John Does 1-5 failed to intervene in the unlawful conduct.
17. As a result of the assault and arrest, Mr. Smalls experienced pain, suffering, mental anguish, and humiliation.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against the individual defendants)**

18. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

19. Defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from the use of excessive force; (e) right to fair trial and due process under the law; (f) freedom from the fabrication of evidence or the lodging of false charges against him by police officers; (g) freedom from malicious prosecution; and (h) failure to intervene to prevent the complained of conduct.
20. Defendants' deprivation of plaintiff's constitutional rights resulted in the injuries and damages set forth above.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL
VIOLATIONS – 42 U.S.C. § 1983
(Against defendant the City of New York)

21. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
22. At all times material to this complaint, defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
23. At all times material to this complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including the individual defendants and failed to inform the individual defendant's supervisors of their need to train, screen, supervise or discipline the individual defendants.

24. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, Fifth, Sixth and Fourteenth Amendments.
25. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

**THIRD CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT
UNDER THE LAWS OF THE STATE OF NEW YORK
(*Against all defendants*)**

26. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
27. By the actions described above, the individual defendants caused to be falsely arrested or falsely arrested plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so, maliciously prosecuted plaintiff, and abused process.
28. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
29. The conduct of the individual defendants alleged herein occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiffs pursuant to the state common law doctrine of respondeat superior.

30. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM FOR RELIEF
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

31. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

32. By the actions described above, the individual defendants did inflict assault and battery upon plaintiff. The acts and conduct of individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

33. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.

34. As a result of the foregoing, Plaintiff suffered emotional distress, humiliation, and was otherwise damaged and injured.

**FIFTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

35. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

36. By the actions described above, the individual defendants caused a criminal proceeding to be initiated against Plaintiff, even though there was no probable cause for an arrest or prosecution in this matter. The individual defendants maliciously caused this prosecution to be initiated in that they knew there was no probable cause for such prosecution and that they further wished to harm and punish Plaintiff for illegitimate reasons and to cover for the individual defendants' misdeeds. The criminal case against Plaintiff was terminated in his favor in that all charges were dismissed.
37. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.
38. As a result of the foregoing, Plaintiff was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

**SIXTH CLAIM FOR RELIEF
ABUSE OF PROCESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

39. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
40. By the conduct and actions described above, the individual defendants caused regularly issued process to be issued against Plaintiff compelling the performance or forbearance of prescribed acts, including but not limited to causing criminal process to issue. The purpose of activating the process was intent to harm Plaintiff without economic or social excuse or justification, and the individual defendants were seeking a collateral advantage or

corresponding detriment to Plaintiff, including but not limited to covering for their own misdeeds by causing Plaintiff to be charged with crimes, a goal which was outside the legitimate ends of the process. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

41. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.
42. As a result of the foregoing, Plaintiff was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

SEVENTH CLAIM FOR RELIEF
NEGLIGENCE
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)

43. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
44. Defendants owed a duty of care to Plaintiff to prevent the physical, mental, and economic damages sustained by Plaintiff. Under the same or similar circumstances, a reasonable, prudent, and careful person would have anticipated that an injury to Plaintiff or to those in a like situation would probably result from this conduct.
45. Defendants jointly and severally, negligently caused injury, pain and suffering, emotional distress, and damage to Plaintiff. The acts and conduct of defendants were the direct and

proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

46. Defendant City and Acacia negligently hired, screened, retained, supervised, and trained the individuals defendants.

47. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

**EIGHTH CLAIM FOR RELIEF
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

48. Plaintiff incorporates by reference the allegation set forth in all preceding paragraphs as if fully set forth herein.

49. By the actions described above, defendants engaged in extreme and outrageous conduct, which negligently caused severe emotion distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

50. As a result of the foregoing, Plaintiff was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

**NINETH CLAIM FOR RELIEF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

51. Plaintiff incorporates by reference the allegation set forth in all preceding paragraphs as if fully set forth herein.

52. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally caused severe emotion distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

53. As a result of the foregoing, Plaintiff was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

JURY DEMAND

54. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

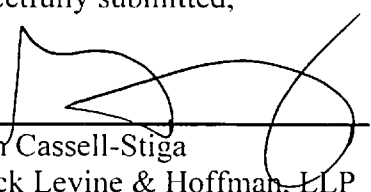
WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
February 9, 2018

Respectfully submitted,

By:



Gillian Cassell-Stiga
Beldock Levine & Hoffman, LLP
Attorneys for the Plaintiff
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-490-0400

VERIFICATION

STATE OF NEW YORK)
 : ss.:
 COUNTY OF NEW YORK)

I, Quwan Smalls, being duly sworn, state:

I am the Plaintiff/Petitioner in the within action. I have read the foregoing Verified Complaint and Petition and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

Quwan Smalls
 Quwan Smalls

Sworn to before me this
9 day of February, 2018.

Notary Public

GILLIAN ROBIN CASSELL-STIGA
 Notary Public, State of New York
 No. 02CA6282570
 Qualified in Kings County
 Commission Expires May 28, 2021

GILLIAN ROBIN CASSELL-STIGA
 Notary Public, State of New York
 No. 02CA6282570
 Qualified in Kings County
 Commission Expires May 28, 2021